

GZ: 2023-0.793.494 dated September 5, 2024 (Case Number: DSB-D124.0885/22)

[Note from the editor: Names and companies, legal forms and product names, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may be abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Theodor A*** (complainant) dated June 20, 2022 against 1) N*** Medienhaus GmbH, FN: *5*6*7n (first respondent), represented by B*** & C*** Rechtsanwälte GmbH, as well as 2) against the Federal Minister of Justice (second respondent) and 3) against the District Court O*** (third respondent), regarding the violation of the right to confidentiality as follows:

1) The complaint against the first respondent and the second respondent is dismissed.

2) The complaint against the third respondent is rejected due to lack of jurisdiction.

Legal bases: Art. 4 No. 7, Art. 5 para. 1 lit. a, Art. 6 para. 1 lit. c, Art. 51 para. 1, Art. 55 para. 3, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), BGBl. I No. 165/1999 as amended; §§ 6, 7, 94 para. 1 of the General Land Register Act 1955 (GBG 1955), BGBl. No. 39/1955 as amended; §§ 6 and 6b of the Land Register Conversion Act (GUG) BGBl. No. 550/1980 as amended.

REASONING

A. Submissions of the parties and procedural history

1. The complainant stated in his originally solely directed complaint against the first respondent dated June 20, 2022, that he considers himself to be violated in his right to confidentiality by this party and elaborated as follows:

On the platform “liegenschaft***.info”, the Austrian land register is published in the name of the Federal Ministry of Justice (hereinafter: second respondent). In this context, personal data/documents are sold for a fee to any person on the internet alongside the land register excerpt. However, the publication of these documents is not necessary; rather, a land register excerpt without documents is sufficient for insight into property rights. Therefore, the complainant initially contacted the respondent as the platform operator by letter dated May 24, 2022, requesting the deletion of the personal documents. The first respondent subsequently referred to its mandate for publication and the legal situation and did not delete the data.

Attached to the complaint were a screenshot of a land register query on the platform

“liegenschaft***.info” for the address of the respondent L***weg *5, ***6 V***stadt, KG *0*9*1, GST *5*/*8, as well as a second screenshot listing the available land register documents in a tabular format that can be added to the shopping cart.

2. The legally represented first respondent subsequently stated in its response dated August 12, 2022, that it follows from the screenshot submitted by the complainant for KG *0*9*1, GST *5*/*7, property address L***weg *5, that the complainant contests the following retrievable documents: Purchase contract 3*44/2016 No. 1, marriage certificate, 3*44/2016 No. 4, citizenship certificate 3*44/2016 No. 5, citizenship certificate 6*3/2016 No. 8, as well as passport 6*3/2016 No. 9. However, the grounds for complaint asserted by the complainant do not exist; the complaint is entirely unfounded, and the assertions made therein are expressly disputed.

In this regard, the first respondent essentially stated as follows: the first respondent is not the data controller but a processor and therefore is not responsible for the alleged violations.

The first respondent offers the data and documents of the commercial register, land register, and Business Information System Austria (GISA) for online inspection on the platform it operates, www.liegenschaft***.info, as a billing office of the Republic of Austria, represented by the second respondent and the Federal Minister for Research and Economy, for a fee. The first respondent has therefore been commissioned by these parties to process the queries. The fees for the queries at the billing offices consist of the fees listed in § 32 TP 9 lit. e GGG and a surcharge for the billing office. The

first respondent is thus under state control through the supervision of the second respondent over the fees it can charge users. Billing offices are prohibited from creating their own collections of commercial register data, offering the data themselves, or adding advertising to the content or presentation. The first respondent has been commissioned by the Republic of Austria as the client to establish and connect for the transmission of query data and query results, to forward the contents of the deliverables unchanged, as well as to provide fee information, fee billing, and fee collection. Thus, it merely provides an electronic connection and a decentralized customer interface for the information maintained by the Austrian state. The first respondent acts as a billing office or as a billing and transmission office between the IT applications of the second respondent and customers and is therefore not a data controller in the sense of Art. 4 No. 7 GDPR, but...

****Processor according to Art. 4 No. 8 GDPR.** The Republic of Austria has therefore, represented by the second respondent, entered into a corresponding data processing agreement with the first respondent. According to § 7 para. 1 GBG, the land register is public; according to para. 2 of the same, anyone may inspect it and obtain copies or excerpts from it. According to § 6 para. 1 GUG, everyone is generally authorized to query the land register, the document collection, and the auxiliary directories – with the exception of the personal directory – from the property database and the document database using automated data processing (land register query). § 6 para. 2 GUG then provides exceptions to the prohibition of inspecting the personal directory. Otherwise, copies and notifications from the personal directory according to § 5 para. 4 GUG may only be issued to those individuals who demonstrate a legal interest and only to the extent justified thereby. Overall, the first respondent would thus merely reproduce generally accessible data without generating new information. For reasons of caution, the first respondent no longer makes the following documents available for retrieval: marriage certificate, 3*44/2016 No. 4; citizenship certificate 3*44/2016 No. 5; citizenship certificate 3*44/2016 No. 6; identity card 6*3/2016 and passport 6*3/2016. The data processing occurs on the basis of a legal mandate for maintaining the public register in the form of a database as well as a legal authorization for anyone to inspect it. There is a public interest of the general public in fulfilling the legal publication mandate and in avoiding access restrictions or selection of the published data. The storage of land register data occurs based on a legal obligation (GUG) and is an activity carried out in the general interest of legal certainty, thus necessary for the performance of a task that lies in the public interest. The data processing is therefore justified according to Art. 6 para. 1 lit. c and e GDPR. Furthermore, the first respondent has an interest in operating the platform www.liegenschaft***.info based on the legal mandate incumbent upon it and in making this and the information available there to the public for a fee. The receipt and dissemination of messages or ideas are protected by the right to freedom of expression and information freedom enshrined in Art. 11 EU Charter of Fundamental Rights and the right to freedom of expression enshrined in Art. 10 ECHR. This applies to the activity of the respondent that is the subject of the complaint, especially since the land register data and documents from the document collection (or their dissemination) must be seen as such data dissemination. With the unambiguously established general and unrestricted accessibility of the land register and the document collection, the legislator has already made a corresponding balancing of interests, resulting in the conclusion that the public interest in access to legally legitimized information should be weighted more heavily than the individual right to confidentiality. The data processing is therefore also justified according to Art. 6 para. 1 lit. f GDPR. There is also no right to deletion, as the first respondent on the one hand only**

****1.**** The processor is not fulfilling any of the conditions mentioned in Art. 17 para. 1 GDPR. Rather, the exceptions in Art. 17 para. 3 lit. a and b GDPR are fulfilled. Furthermore, there is no violation of § 1 DSG, as the data subject to the complaint consists of lawfully published, publicly available data and thus constitutes non-protectable data according to § 1 para. 1 DSG.

****2.**** The complainant stated in his submissions dated September 24, 2022, and October 27, 2022, that he still considers the publication of the relevant data to be unlawful and that he now extends his complaint against the second respondent based on the arguments presented by the first respondent.

****3.**** The second respondent stated in its submission dated November 14, 2022, that the processing of the data in the land register (or the collection of documents) is attributable to the judicial activity in

the sense of § 83 para. 2 GOG and therefore the data protection authority is not competent. Furthermore, the second respondent is not a controller in the sense of Art. 4 no. 7 GDPR. It only provides the technical basis and the application solution for the electronic management of the land register but does not carry out any processing of personal data in the land register and has no decision-making authority in this regard. Rather, according to § 75 para. 2 GBG 1955, the land register court responsible according to para. 1 leg. cit. decides on all entries in the land register and thus also on which personal data are to be recorded. The second respondent is constitutionally prohibited from influencing this according to Art. 94 para. 1 B-VG. The publication is necessary to prove the legality of the entry, and there is no violation of the principle of proportionality nor any infringement of the fundamental right to respect for private and family life according to Art. 8 ECHR. From § 6 in conjunction with § 7 GBG, it follows that not only the data of the land register but also the documents underlying the entries in the land register are publicly accessible. In the collection of documents of EZ 8*1, KG *0*9*1, the following documents are located regarding TZ 3*44/2016: purchase agreement, ranking order decision, official confirmation, proof of citizenship (Theodor A***), proof of citizenship (Eva A***), pledge order document. Only those documents that are marked with "F" in the "Status" column are publicly queryable (Note from the data protection authority: all except the ranking order decision). The proofs of citizenship are necessary because, under the Vienna Foreign Property Act, proof of Austrian citizenship must be provided to acquire ownership rights. The marriage certificate is necessary because, simultaneously with the ownership rights, the contractual encumbrance and disposal prohibition agreed upon between the spouses A*** has been entered in the land register, and a documentary proof of belonging to the group of persons under § 364c ABGB is required for this.

5. After receiving the statement from the second respondent in the context of the parties' right to be heard, the complainant announced in his letter dated November 28, 2022, that he would also extend his complaint to the third respondent based on the submissions made.

6. The third respondent stated in his response dated December 9, 2022, that the contested provision of documents in the collection of documents occurred in the context of a judicial activity pursuant to Article 55(3) GDPR and therefore there was no supervisory authority competence. The processes challenged in the complaint were legally provided for, as the land register is public according to Section 7(1) of the Land Register Act (GBG). The fact that this often makes highly personal data accessible to a wide audience can only be addressed through a change in the law.

7. The first respondent presented in a further statement dated January 12, 2023, essentially the same arguments as before and additionally stated that the complainant had made the affected data accessible on his website and therefore, for this reason as well, there was no protectable interest in confidentiality.

8. The complainant responded on January 27, 2023, essentially stating that contrary to the claims of the first respondent, he had not published copies of documents on his homepage and therefore had not published all the data himself. His complaint was not directed against the fundamental publication of an excerpt from the land register, but against the paid publication of the collection of documents on the internet, with the possibility of purchasing and downloading copies of documents.

9. In response to an inquiry from the data protection authority, the first respondent stated in a further statement dated March 31, 2023, that it had no ability to decide which documents were made available for retrieval or whether certain documents were no longer kept available for retrieval. In light of the present proceedings, it had coordinated with and obtained approval from the responsible parties for the processing in question (Republic of Austria, represented by the second respondent) to ensure that the documents subject to the complaint were no longer kept available for retrieval; this was done solely as an emergency measure to keep any potential damage (penalty from the data protection authority) as far away as possible from the responsible party and from itself. Since this measure was taken in coordination with the responsible party, the Republic of Austria, represented by the second respondent, it does not change the qualification of the first respondent as a processor of the first respondent. The first respondent is obliged under point 4.7 of the attached agreement on data processing with the Republic of Austria to provide its customers access to the databases subject to the contract – these are the commercial register database, land database, edict file, and the databases of procedural automation in the judiciary – via IT applications.

ensure. The forwarding of the content of the IT applications to the customer by the first respondent must occur unchanged and in full; any alteration of the content or presentation is not permitted for the first respondent. The first respondent is bound by instructions and has acted exclusively under such instructions. Even if the data protection authority unexpectedly attributes the role of controller to the first respondent due to the relevant measure, such a designation would qualify solely in relation to the specific measure (namely, the removal of the connection for the transmission of query data and the omission of forwarding the contents). However, the documents in question would still be publicly accessible—through other billing offices or directly at the land registry court. The status of the first respondent regarding the previously provided public land registry data for retrieval would, however, remain unchanged as that of a processor. The decision regarding which entries must be made in the publicly accessible land registry according to § 7 Abs. 1 GBG and which personal data or documents containing such data should be included in the also public document collection is solely the responsibility of the land registry court in non-contentious proceedings. The processing of personal data contained in the public land registry is therefore a judicial activity. Based on § 1 GUG, the second respondent has ordered the transition of the land registry to automated data processing in accordance with technical and personnel capabilities and is solely responsible for providing the technical basis or application solution for maintaining the electronic land registry. The decision regarding which entries should be made in the (now) electronic land registry and which documents should be included in the document collection also contained in the electronic land registry is assigned as a judicial activity exclusively to the land registry court.

The complainant attached two different screenshots of views from the platform operated by the first respondent, "liegenschaft***.info," as appendices to his complaint: 1. Screenshot regarding "L***weg *5" and 2. Screenshot "K***platz 1*/3." In the first screenshot regarding "L***weg *5," 8 additional documents are visible for retrieval, with the documents marriage certificate, 3*44/2016 No. 4, citizenship certificate 3*44/2016 No. 5, and citizenship certificate 3*44/2016 No. 6 being the subject of the complaint. Regarding the second screenshot concerning "K***platz 1*/3": here, 18 documents are visible for retrieval, with the documents "Identity card 6*3/2016" and "Passport 6*3/2016" being the subject of the complaint. However, a review of these documents has revealed that they do not pertain to the complainant but to a different natural person. Therefore, there is a lack of both a need for legal protection and the legitimacy of the complaint.

10. The complainant subsequently summarized in his statement of July 1, 2023, that the first respondent correctly recognized that the second object (Note of the data protection authority: at K***platz 1*/3, ***5 V***stadt) does not concern him, that it is not him.

Subject matter, however, was about clarifying why there are clear rules in the online land register regarding which documents are accessible. This complaint is not only about himself and not about the fundamental online publication of the land register, but about the publication of the collection of documents. It is also pointed out that a concessionaire is liable for compliance with data protection regulations according to the submitted contract. The GDPR is an EU regulation; even if there is an Austrian law, it may not comply with EU law. It is incomprehensible that copies of "highly sensitive" documents from Austrian landowners would be sold to all people in the world via an online platform.

11. In response to inquiries from the data protection authority, the second respondent summarized in her statement dated July 17, 2023, as before, that she is not the "controller" in the sense of the GDPR and that the data protection authority does not have jurisdiction over the present complaint procedure, as the processing of personal data in connection with land register entries occurs within the framework of the judicial activities of the competent court. Furthermore, the processing is based on a legal foundation and is therefore lawful; the basis for the inclusion of documents in the collection of documents is § 6 GBG. In the present case, only documents have been included that represent the basis for the book entry according to § 6 GBG, namely the acquisition document (purchase contract) and an official confirmation as proof of ownership rights; citizenship certificates as proof of the lawful acquisition of ownership rights based on the Vienna Foreigners' Land Traffic Act; marriage certificates as proof for the permissible entry of a burden and prohibition of disposal, which depends according to § 364c ABGB on belonging to a specific group of persons. The land register court decides according to

§ 75 para. 2 GBG in non-contentious proceedings in all matters according to the land register law, thus also regarding all entries in the land register as well as which documents are to be included in the collection of documents. The storage of documents in a document database is based on § 2 para. 4 and § 1 para. 3 GUG as well as on the conversion regulations issued for § 1 para. 3 GUG. The processing of the complainant's personal data therefore complies with the processing principles of legality, purpose limitation, and data minimization according to Art. 5 para. 1 lit. a to c GDPR while maintaining the principle of proportionality of the contested data processing according to § 1 para. 2 last sentence DSG, because in the processing of documents, the interest of the state and legal transactions in the accuracy, precision, and – also subsequent – verifiability of land register entries outweighs.

12. The complainant replied in his statement dated November 5, 2023, summarizing that access to the published data should only be the exception, and that an independent party should determine whether the current legal regulation and procedure for the publication of the collection of documents of the land register on the internet sufficiently protects personal data or not.

B. Subject of the Complaint

The subject of the complaint is to clarify whether the respondents have violated the complainant's right to confidentiality by allowing documents containing data related to him to be accessed for a fee during online inspections of the collection of documents in the land register.

C. Findings of Facts

1. The complainant is the owner of a property located at L***weg *5, ***6 V***stadt, KG *0*9*1, GST *5*/*8.

Assessment of Evidence: The finding is based on the statements made by the complainant in his complaint dated June 20, 2022, and the documents submitted therewith, as well as the corresponding statements of the first respondent dated March 31, 2023.

2. The first respondent offers, for a fee, all data and documents from the corporate register, land register, and Business Information System Austria (GISA) for online inspection on the platform www.liegenschaft***.info as a billing agency of the Republic of Austria.

3. For this purpose, the first respondent has concluded a data processing agreement with the Republic of Austria, represented by the second respondent.

4. The forwarding of the content to customers by the first respondent must occur unchanged and in full; any alteration of the content or its presentation is not permitted for the first respondent. The first respondent is bound by the instructions of its client (Republic of Austria represented by the second respondent) when establishing the IT connection between its client and the customers, as well as in forwarding the content.

Assessment of Evidence: The findings are based on the verifiable statements of the first respondent dated March 31, 2023, and the documents submitted therewith.

5. As of July 3, 2022, the following documents could be accessed for a fee on the website operated by the first respondent at www.liegenschaft***.info in the context of a land register inquiry for the address L***weg *5, ***6 V***stadt, KG *0*9*1, GST *5*/*8:

(Formatting not reproduced 1:1)

[Note from the editor: The screenshot provided here in the original as a graphic file with the actual data of the property cannot be pseudonymized with reasonable effort and has therefore been removed.]

Fig. 1; Screenshot 1 submitted by the complainant in his complaint dated June 20, 2022.

Assessment of Evidence: The findings are based on the undisputed statements of the complainant in his complaint dated June 20, 2022, and the documents submitted therewith, as well as an official inquiry conducted at www.liegenschaft***.info for the address L***weg *5, ***6 V***stadt, KG *0*9*1, GST *5*/*8, retrieved on July 3, 2022.

6. As of February 8, 2023, the following documents could be accessed for a fee on the website operated by the first respondent in the context of a land register inquiry for the address L***weg *5, ***6 V***stadt, KG *0*9*1, GST *5*/*8:

(Formatting not reproduced 1:1)

[Note from the editor: The screenshot provided here in the original as a graphic file with the actual data of the property and a list of accessible documents cannot be pseudonymized with reasonable effort and has therefore been removed.]

Fig. 2

7. As of February 8, 2023, the following documents were no longer available for retrieval by the first respondent on its platform www.liegenschaft***.info: Marriage certificate, 3*44/2016 No. 4; Citizenship certificate 3*44/2016 No. 5; Citizenship certificate 3*44/2016 No. 6; Identity card 6*3/2016 and passport 6*3/2016.

Assessment of Evidence: The findings are based on the statement of the first respondent dated August 12, 2022, as well as an official inquiry conducted at www.liegenschaft***.info for the address L***weg *5, ***6 V***stadt, KG *0*9*1, GST *5*/*8, retrieved on February 8, 2023.

8. In the collection of documents of EZ 8*1, KG *0*9*1, the following documents can be found for TZ 3*44/2016:

(Formatting not reproduced 1:1)

[Note from the editor: The screenshot provided here in the original as a graphic file with a list of documents cannot be pseudonymized with reasonable effort and has therefore been removed. All documents except for one ranking decision are marked with the status indicator "F."]

Fig. 3

9. Only those documents that are marked with "F" in the "Status" column are publicly accessible.

Assessment of Evidence: The findings are based on the statement of the second respondent dated November 14, 2022.

10. The documents visible in the second screenshot submitted by the complainant in his complaint dated June 20, 2022 (Fig. 4, Screenshot 2) originate from the collection of documents of the land register concerning the property located at K***platz 1*/3, ***5 V***stadt, and do not contain any documents with personal data of the complainant (formatting not reproduced 1:1).

[Note from the editor: The screenshot originally provided here as a graphic file with a list of documents cannot be pseudonymized with reasonable effort and has therefore been removed.]

Fig. 4; Screenshot 2 submitted by the complainant in the context of his complaint dated June 20, 2022

Assessment of evidence: The finding is based on the submission of the first respondent dated March 31, 2023, which was confirmed by the complainant in his statement dated July 1, 2023.

D. From a legal perspective, it follows:

1. General information on the distribution of roles under data protection law

According to Art. 4 No. 7 GDPR, the natural or legal person, authority, institution, or other entity that determines the purposes and means of processing personal data, either alone or jointly with others, is the controller for that processing. The essential criterion here is the decision-making component. The role of the controller thus primarily arises from the fact that a specific entity has decided to process personal data for its own purposes.

The "purpose" describes an expected outcome, while the "means" define how the expected outcome is to be achieved (cf. Art. 29 Data Protection Working Party, Opinion 1/2010 on the concepts of "controller" and "processor," WP 169, 00264/10/DE, pp. 15 ff, still in relation to Art. 2 lit. d of the Data Protection Directive 95/46/EC, as well as regarding the new legal situation see the EDPB guidelines of September 2, 2020 "Guidelines 07/2020 on the concepts of controller and processor in the GDPR" available at https://edpb.europa.eu/our-work-tools/public-consultations-art-704/2020/guidelines-072020-concepts-controller-and-processor_en)

According to Art. 4 No. 8 GDPR, the natural or legal person, authority, institution, or other entity that processes personal data on behalf of the controller is the processor. The essential criterion here is the binding nature of instructions. The role of the processor thus primarily arises from the fact that a specific entity has decided to process personal data on behalf of the controller (cf. Art. 29 Data Protection Working Party, WP 169, 00264/10/DE, pp. 30 ff).

2. Regarding the complaint against the first respondent

As can be seen from the established facts, the first respondent is required to ensure access to the land register database through IT applications based on an agreement with the Republic of Austria –

represented by the second respondent. However, the first respondent does not have decision-making authority over which data/documents are included in the land register database; it is only responsible for ensuring that the content is forwarded unchanged and completely via IT applications, thereby enabling online access. It is also bound by the instructions of its principal.

Therefore, the first respondent does not qualify as a controller under Art. 4 No. 7 GDPR, which is why the complaint against it had to be dismissed.

3. Regarding the complaint against the second respondent

According to § 1 para. 1 GUG, the Federal Minister of Justice is authorized, in agreement with the Federal Minister for Economic Affairs, to order the transition of the land register to automated data processing (§ 2 para. 1) according to the technical and personnel possibilities and taking into account the economic feasibility for certain courts by regulation.

The second respondent is therefore to be qualified as (jointly) responsible for the operation of the land register database as well as the document database.

However, the second respondent does not have decision-making authority over which data/documents are included in the land register database or the document database; this decision is made exclusively by the third respondent as the locally competent land register court (cf. § 75 GBG in conjunction with § 1 § 118 No. 4 JN). Also, any requests for restrictions on access to the documents included in the document collection and stored in the document database must be decided exclusively by the third respondent upon request of an affected person in non-contentious proceedings (cf. § 6b GUG).

Therefore, the second respondent is not to be qualified as a controller under Art. 4 No. 7 GDPR regarding these specific processing activities (inclusion/restriction of data in the land register or document database), which is why the complaint against it had to be dismissed.

4. Regarding the complaint against the third respondent

4.1. Regarding the jurisdiction of the Data Protection Authority

According to Art. 55 para. 3 GDPR, supervisory authorities are not responsible for overseeing processing carried out by courts in the course of their judicial activities.

Recital 20 of the GDPR states that this is intended to serve the independence of the judiciary in the exercise of its judicial tasks, including its decision-making. The judgment of the CJEU of March 24, 2022, regarding the interpretation of Article 55(3) GDPR indicates that the scope of the objective pursued by Article 55(3) GDPR, which is to safeguard the independence of the judiciary in the exercise of its judicial tasks, cannot be limited solely to ensuring judicial independence in the context of issuing a specific judicial decision (Judgment of March 24, 2022, C-245/20, *Autoriteit Persoonsgegevens*, para. 33). Therefore, the term "judicial activity" should be understood broadly.

In the (preliminary) conclusions of the Advocate General dated October 6, 2021, it was stated that, according to Article 55(3) GDPR, two conditions must be met: first, the involvement of a certain type of institution ("courts") and second, a specific type of activity of these courts ("in the context of their judicial activity") (see Advocate General's conclusions of October 6, 2021, C-245/20, para. 72).

In this context, it should be noted that through the Land Register Amendment 2024, Federal Law Gazette I No. 91/2024, the GUG has been amended such that § 6b GUG now provides that the third respondent, as the competent land register court, must decide on applications from an affected person for the restriction of access to documents in the collection of documents in a non-contentious procedure. The applicant also has party status in such a procedure (see § 6b(2) GUG).

In this regard, the jurisprudence of the Data Protection Authority, according to which a land register court acts merely as a "register court" in land register matters and consequently there is a jurisdiction of the Data Protection Authority (see the decision of June 9, 2022, GZ 2021-0.643.804, RIS), cannot be upheld.

Therefore, it concerns both the involvement of a court (first condition) and an activity with judicial character (second condition), which is why there is overall a judicial activity in the sense of Article 55(3) GDPR (see also the decision of January 22, 2019, GZ DSB-D123.848/0001-DSB/2019, RIS regarding maintenance disputes).

Except in the case of contrary statutory provisions, the authority must consider the factual and legal

situation at the time of the decision (see e.g., VwGH August 24, 2023, Ra 2022/22/0093).

The Data Protection Authority is therefore not competent to handle the complaint against the third respondent, which is why it had to be dismissed.

It was therefore to be decided in accordance with the ruling.